BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. IV, NEW DELHI

CA (CAA)-107 (ND)/2020

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

In the matter of Scheme of Amalgamation

OF

DEVESH BUILDHOME PRIVATE LIMITED

(Transferor Company No.1/Applicant Company-1)

AND

UNISTAR INFRATECH PRIVATE LIMITED

(Transferor Company No.2 /Applicant Company-2)

WITH

BLUESTAR BUILDROP PRIVATE LIMITED

(Transferee Company /Applicant Company-3)

CORAM:

Dr. DEEPTI MUKESH

HON'BLE MEMBER (Judicial)

SMT. SUMITA PURKAYASTHA

HON'BLE MEMBER (Technical)

MEMO OF PARTIES

DEVESH BUILDHOME PRIVATE LIMITED

Having its registered office at:

907, Pearls Business Park

Netaji Subhash Place Pitampura

New Delhi 110088

(Transferor Company No.1/Applicant Company-1)

AND

UNISTAR INFRATECH PRIVATE LIMITED

Having its registered office at:

907, Pearls Business Park

Netaji Subhash Place Pitampura

New Delhi 110088

(Transferor Company No.2 /Applicant Company-2)

WITH

BLUESTAR BUILDROP PRIVATE LIMITED

Having its registered office at:

907, Pearls Business Park

Netaji Subhash Place Pitampura

New Delhi 110088

(Transferee Company /Applicant Company-3)

Order Delivered on :03.09.2021

For the Petitioner : Mr.Madan Kumar Maroti, FCA

Mr. N. Gurumurthy, FCA

ORDER

Per-Smt. Sumita Purkayastha, Member (T)

1. This is joint application filed by the applicant companies herein, **DEVESH BUILDHOME PRIVATE LIMITED** (Transferor Company No.1 /Applicant Company-1), **UNISTAR INFRATECH PRIVATE LIMITED** (Transferor Company No.2 /Applicant Company-2), and **BLUESTAR BUILDROP PRIVATE LIMITED** (Transferee Company /Applicant Company-3) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavit in support of the above application sworn by Mr. Ritesh Goyal, the Director of the Applicant Companies. It is also represented that the registered office of the applicant companies are under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.

3. The Transferor Company No.1 /Applicant Company No.1 is a private limited company incorporated on 12.02.2011 under the provisions of Companies Act, 1956 bearing CIN U45200DL2011PTC214003 with registrar of Companies, NCT of Delhi and Haryana under the name and style of "Devesh

Buildhome *Private Limited*" and having its registered office at 907, Pearl Business Park, Netaji Subhash Place, Pitampura New Delhi 110088. The Authorized Share Capital of the Transferor Company is Rs.32,500,000/- and the Paid-up Share Capital is Rs. 24,00,000/-

4. The Transferor Company No.2 /Applicant Company No.2 is a private limited company incorporated on 22.08.2012 under the provisions of Companies Act, 1956 bearing CIN U70200DL2012PTC240525 with registrar of Companies, NCT of Delhi and Haryana under the name and style of "Unistar Infratech Private Limited" and having its registered office at 907, Pearl Business Park, Netaji Subhash Place, Pitampura New Delhi 110088. The Authorized Share Capital of the Transferor Company is Rs. 1,00,000/- and the Paid-up Share Capital is Rs. 1,00,000/-.

5. The Transferee Company/ Applicant Company No.3 is a private limited company incorporated on 12.12.2007 under the provisions of Companies Act, 1956 bearing CIN U70200DL2012PTC240525 with registrar of Companies, NCT of Delhi and Haryana under the name and style of "Bluestar Buildrop Private Limited" and having its registered office at 907, Pearl Business Park, Netaji Subhash Place, Pitampura New Delhi 110088. The Authorized Share Capital of the Transferor Companyis Rs.40,00,000/- and the Paid-up Share Capital is Rs. 38,65,000/-.

6. The Applicant Companies have filed their respective Memoranda and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the financial 31.03.2019.

7. The Applicant companies, vide their respective meetings of the Board of Directors held on 23.07.2020 for Applicant Company No.1 and 22.03.2020 for the Applicant Company No.2 and Applicant No,3 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record.

8. The applicants have furnished the details of the consents given on affidavit the Shareholders, Secured Creditors and Unsecured Creditors in the Scheme of the applicant companies as on date which are as follows:

S.No.	Name of the Company	No. of Share Holders	**CONSENT OBTAINED**	No. of Secured Creditors	No. of Unsecured Creditors	**CONSENT OBTAINED**
1	***DEVESH BUILDHOME PRIVATE LIMITED***	2	ALL	NIL	NIL	NIL
2	***UNISTAR INFRATECH PRIVATE LIMITED***	2	ALL	NIL	NIL	NIL
3	***BLUESTAR BUILDROP PRIVATE LIMITED***	5	ALL	NIL	1	ALL

The applicant companies have therefore prayed for dispensation of all the meetings

9. The appointed date as specified in the Scheme is 01.04.2019 subject to the directions of this Tribunal.

10. Taking into consideration the submissions and the documents filed therewith, we propose to issue the following directions with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows: -

A. <u>In relation to the Transferor CompanyNo.1 :</u>

a) **With respect to Equity shareholders:** In view of consent affidavits, from 2 equity shareholders having 100% voting share been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There are no Un-Secured Creditors, therefore the necessity of convening a meeting does not arise.

B. <u>In relation to the Transferor Company No.2 :</u>

a) **With respect to Equity shareholders:** In view of consent affidavits, from 2 equity shareholders having 100% voting share been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There are no Un-Secured Creditors, therefore the necessity of convening a meeting does not arise.

C. **In relation to Transferee Company:**

a) **With respect to Equity shareholders:** In view of consent affidavits, from 5 equity shareholders having 100% voting share been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There is 1 Un-secured Creditors, who has filed the consent affidavits, hence convening the meeting of the un-secured creditors has been dispensed with.

11. The application stands allowed on the aforesaid term and disposed off.

SD/-

SUMITA PURKAYASTHA
MEMBER (T)

SD/

Dr. DEEPTI MUKESH
MEMBER (J)